

**SUPPLEMENTAL MEMORANDUM ON
CROSS-BORDER MARKETING/SELLING OF ELTIFs
IN
NORWAY**

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1. BACKGROUND

1.1 Introduction

Please refer to the *Instructions to Counsel* that you have been sent in conjunction with this Supplemental Memorandum. When preparing responses to this Supplemental Memorandum, please refer to existing answers that you have provided in the Part B Memorandum.

1.2 Definitions

Please refer to the definitions set out in Appendix 1 of the *European Framework Document*. Terms not defined in Appendix 1 of the *European Framework Document* have the following meaning:

cross-border	Where: (a) clients, or prospective clients, are located in your jurisdiction; (b) the OFI is headquartered in a jurisdiction different to your own and either has no licensed office in your jurisdiction or is not carrying out the marketing or selling through any licensed office in your jurisdiction; and (c) employees of the OFI are based in a different jurisdiction to your own and are employed by an entity within the OFI group which is headquartered in a different jurisdiction to your own.
EEA Passporting Entity	A MiFID II Investment Firm, CRD Credit Institution, UCITS ManCo or EEA AIFM authorised in another EEA country with appropriately scoped permissions and which has exercised its right to passport into the jurisdiction on the basis of its home state authorisation.
ELTIF	European Long-Term Investment Fund, whether approved in accordance with the ELTIF Original Regulation or ELTIF 2.0 Regime.
ELTIF 2.0 Regime	ELTIF Regulation (EU) 2023/606 amends the ELTIF Original Regulation. It was effective as of 9 April 2023 entered into application on 10 January 2024.
ELTIF Additional Notification Requirements	In addition to the documentation and information required pursuant to the marketing passport notification procedures of the AIFMD, the manager of the ELTIF should provide the competent authority in its home member state with the following: • The prospectus of the ELTIF (the content of which is required to include the information to be disclosed by collective investment undertakings of the closed-end type in accordance with PR3 and comply with Article 23 of the ELTIF Regulation); and • The PRIIPs KID, in the event the ELTIF will be marketed to Retail Investors.
ELTIF Additional Retail Investor Documentation Requirements	• PRIIPs KID: A PRIIPs KID is required • Confirmation that ELTIF intended for Retail Investors: The prospectus and any other marketing documents shall state that the ELTIF is intended to be marketed to Retail Investors. • Paper Copy of Annual Report: The prospectus should include a statement confirming that a paper copy of the annual report shall be delivered to Retail Investors upon request and free of charge. • Paper Copy of the Prospectus: Pursuant to Article 24 of the ELTIF Regulation, a paper copy shall be delivered to Retail Investors upon request and free of charge.

- **Annual Report – Feeder ELTIF:** For a feeder ELTIF that is to be marketed/sold to a Retail Investor, it is necessary to include a statement on the aggregate charges of the feeder ELTIF and the master ELTIF. The annual report of the feeder ELTIF shall indicate how the annual report of the master ELTIF can be obtained.
- **Annual Report – Additional Financial Information:** Pursuant to Article 23(6) of the ELTIF Regulation, certain additional financial information (e.g. relating to quantitative limits that apply to risk management) should be provided upon the request of a Retail Investor.
- **Suitability Documentation:** A statement of suitability should be provided to a Retail Investor in accordance with the requirements described in Article 30 of the ELTIF Regulation. If the result of a suitability assessment is that the ELTIF is not suitable for a Retail Investor and such investor nevertheless wishes to proceed, then express consent of that Retail Investor should be obtained. Note such waiver is not possible where the suitability assessment is provided in the context of investment advice.
- **Clear Written Alert:** The Retail Investor should be informed by means of a clear written alert of the information set out in Article 30(2) of the ELTIF Regulation.
- **Feeder ELTIF:** shall disclose in marketing communications that it permanently invests 85% or more of its assets in units/shares of master ELTIF.
- **Cooling-off period:** Retail Investors shall be able during the subscription period and during a period of 2 weeks after the signature of the initial commitment or subscription agreement, to cancel their subscription and have money returned without penalty.
- **Complaints:** The manager of the ELTIF shall establish appropriate procedures and arrangements to deal with Retail Investor complaints.
- **Equal treatment:** The rules or instruments of incorporation of an ELTIF marketed to Retail Investors in the relevant class of units or shares shall provide that all investors benefit from equal treatment and that no preferential treatment or specific economic benefit is granted to individual investors or groups of investors within the relevant class or classes.

ELTIF Marketing Passport

A marketing passport available to ELTIFs that have been approved under the ELTIF Original Regulation or ELTIF 2.0 Regime.

ELTIF Original Regulation

ELTIF Regulation (EU) 2015/760.

ELTIF Regulation

Means the ELTIF Original Regulation as amended by the ELTIF 2.0 Regime.

ELTIF Transparency Requirements

- **Information on redemptions of units/shares:** Pursuant to Article 18(1) of the ELTIF Regulation, disclosures to investors should explain the procedures for the redemption of units or shares and the disposal of assets, and state clearly that redemptions to investors shall be possible as from the day following the date of the end of life of the ELTIF (except where the derogation at Article 18(2) of the ELTIF Regulation applies and redemptions during the life of the ELTIF are possible).
- **Prospectus:** The units or shares in an ELTIF cannot be marketed in the EU without the prior publication of a prospectus. Article 23 of the ELTIF Regulation sets out requirements in relation to what information such a prospectus should contain (which includes the information prescribed by PR3), Article 24 of the ELTIF Regulation sets out additional requirements that apply in connection with the prospectus (including that the rules or instruments of incorporation shall be annexed thereto) and Article 25 of the ELTIF Regulation sets out the requirements that apply to cost disclosures in the prospectus.
- **Information about illiquid nature of ELTIF:** The prospectus and any other marketing documents should prominently inform investors about the illiquid nature of the ELTIF. Article 23(4) of the ELTIF Regulation sets out the type of information that is to be provided.
- **Annual Report:** In addition to complying with the requirements applicable to annual reports set out in Article 22 of the AIFMD Directive, Article 23(5) of the ELTIF Regulation sets out certain additional information requirements in connection with the annual report.

Fly-In Meeting

Employees of the OFI flying into your jurisdiction to carry out marketing activities.

Fund

A collective investment undertaking, with or without legal personality, which raises capital from a number of investors with a view to investing it in accordance with a defined investment policy for the benefit of those investors. For the purposes of this Memorandum, local counsel have been instructed to assume that all Funds are offshore.

OFI

A bank, asset manager or other offshore financial institution e.g. distributor, which is marketing or providing financial products or services and is headquartered in a different jurisdiction to your jurisdiction.

2. GUIDELINES FOR COMPLETING THIS SUPPLEMENTAL MEMORANDUM

Please check the boxes below to **confirm** you have followed each of these guidelines:

Please **do**:

- (a) provide **focused answers**, which deal only with issues/requirements/exemptions/conditions that are **relevant to a financial institution** (e.g. bank / securities firm / credit institution / hedge fund / investment fund / pension fund / insurance firm) – please do **not** provide theoretical answers that could never apply in practice to a financial institution; ☒
- (b) **cross-refer**, where appropriate, to answers in the Part B Memorandum. ☒
- (c) ensure that you **answer all of the questions** posed in this Supplemental Memorandum (please note that certain questions comprise several separate questions, all of which must be answered); ☒
- (d) use the **defined terms** in section 1.2 of this Supplemental Memorandum and in Appendix 1 of the *European Framework Document*; ☒
- (e) begin answers with "**Yes**" or "**No**", where possible, followed up with a **simple and concise** explanation; ☒
- (f) where publicly available free of charge, please provide (i) **a website link to any guidance** (e.g. guidance issued by the competent regulator) referred to in your responses; and (ii) an **English translation** of any such guidance; ☒
- (g) **complete Appendix 1** which pulls together the required and recommended legends to be included in ELTIF marketing materials; and ☒
- (h) **confirm** that you have read and agree with the contents of the *European Framework Document*. ☒

Please **do not**:

- (i) leave any answer **blank** – if a question is not applicable, please indicate this by stating "N/A" (and provide a brief explanation why it is not applicable); ☒
- (j) **modify** any question or the format of this Supplemental Memorandum; or ☒
- (k) qualify your answer with **additional factual assumptions** unless agreed with aosphere LLP. ☒

3. SPECIFIC ISSUES RELATING TO CROSS-BORDER MARKETING/SELLING OF ELTIFs

Questions	Answers
ELTIF 2.0 Regime	
This Supplemental Memorandum concerns the position that applies in your jurisdiction in terms of the process for using the ELTIF Marketing Passport and rules regarding the cross-border marketing/selling of ELTIFs. When seeking actual authorisation of an ELTIF, care should be taken to consider the whole of the ELTIF Regulation which is not covered by this Supplemental Memorandum. When preparing the answers counsel are confirming the position that will apply from 1 April 2026. Note that we do not consider any tax aspects of an ELTIF in a particular jurisdiction – this is outside the scope of Marketing Restrictions – Asset Management.	
ELTIF Marketing Passport	
In this section we are concerned with the process of passporting an ELTIF into your jurisdiction. In relation to the passporting of an ELTIF into your jurisdiction, please cross-refer to your answers on the AIFMD Marketing Passport set out in section 4.2 of the Part B Memorandum, where applicable. Please also distinguish where the process differs depending on whether the passported ELTIF will be marketed/sold to Retail Investors and/or Professional Investors only:	
(a) the notification process ;	Professional Investors only: The notification process is the same for other AIFs as set out in section 4.2 of the Part B Memorandum, i.e. via the home Member State regulator. However, it is necessary to consider the ELTIF Additional Notification Requirements. We note the requirement discussed in section 4.2(d) of the Part B Memorandum, regarding the steps which must be established and taken to prevent units or shares of the EEA AIF from being marketed to Non-Professional Investors in Norway. This would also apply where the AIF is an ELTIF that is only to be offered to Professional Investors. Retail Investors: Please note that in this Supplemental Memorandum, we will use the term Non-Professional Investor as this aligns with the definition that we have used in the Part B Memorandum. With regard to ELTIFs to be offered to Non-Professional Investors, as part of ELTIF Additional Notification Requirements it is necessary to provide a copy of the PRIIPs KID. Please note that the prospectus for an ELTIF is required to include the information to be disclosed by collective investment undertakings of the closed-end type in accordance with PR3. However, depending on the type of ELTIF (e.g. whether the interests amount to “securities” within the scope

	of the PR3 and/or whether it will be listed) it may be separately necessary to consider whether it is required to have the prospectus approved pursuant to PR3 or whether the activities can be structured pursuant to a PR3 exemption.
(b) timescales;	Professional Investors only: The position as set out in section 4.2(h) of the Part B Memorandum would apply i.e. after 20 working days from receipt of notification file by the home Member State regulator, see art. 31 (2) of the ELTIF Regulation.. Retail Investors: The position as set out in section 4.2(h) of the Part B Memorandum would apply i.e. after 20 working days from receipt of notification file by the home Member State regulator, see art. 31 (2) of the ELTIF Regulation.
(c) Are there any fees payable in your jurisdiction: (i) upon receipt of an incoming ELTIF Marketing Passport notification; and (ii) payable on an ongoing basis;	There are no fees for ELTIFs notified for marketing in Norway under the EEA passporting rules after 30 September 2025.
(d) Is it necessary to appoint a local agent/distributor or to make facilities available in line with the CBDF Directive (or otherwise) in order to utilise the ELTIF Marketing Passport in your jurisdiction?	Professional Investors only: No requirement. Retail Investors: Facilities (as such term is defined in the Part B Memorandum) are to be provided. It should be noted that facilities must be provided to Non-Professional Investors in Norwegian. These facilities can be provided electronically without a presence/local agent in Norway. See section 6.1(c)(iv) of the Part B Memorandum for more detail on the facilities requirements in Norway which would apply equally where the Fund is an ELTIF.
(e) Is it necessary to provide investors with a PRIIPs KID , and if so, what language does the KID need to be in;	Professional Investors only: No requirement. Retail Investors: Yes a PRIIPs key information document, or KID, is required. It must be in Norwegian.
(f) What language the other documents to be filed need to be in;	Professional Investors only: There is no statutory requirement in this respect. Generally, in addition to Norwegian, English and any of the Scandinavian languages would be acceptable for filings to the NFSA regarding Professional Investors. Retail Investors: Any information required to be given to Non-Professional Investors under the AIF Act in Norway, must be given in the Norwegian language per section 7-5 of the AIF Act. Norwegian authorities may make exemptions from this requirement, but no such exemptions are currently given.
(g) Initial and ongoing filing requirements; and	Professional Investors only: The position under section 6.5 of the <i>European Framework Document</i> applies. Article 32 of the AIFMD is implemented in sections 6-2 and 6-3 of the

	AIFMA. Retail Investors: The position under section 6.5 of the <i>European Framework Document</i> applies. Article 32 of the AIFMD is implemented in sections 6-2 and 6-3 of the AIFMA.
(h) Please could you provide a link to the local regulator's website (even if in the local language only) where information on the notification procedure for an incoming passported ELTIF Fund is set out.	Professional Investors and Retail Investors: https://www.finanstilsynet.no/tillatelser/aif-forvalter/informasjon-og-skjemaer-for-markedsforing-av-aif-i-norge/ Information page in English: https://www.finanstilsynet.no/en/licensing/alternative-investment-fund-manager-aifm/marketing-of-aifms/
Reverse Enquiry in relation to an ELTIF	
(i) Is it possible to respond to a reverse enquiry regarding an ELTIF which has not been passported into your jurisdiction?	Professional Investors only: See section 5(a)-(b) of Part B Memorandum. The analysis in those sections regarding reverse enquiries received from Professional Investors regarding AIFs applies equally where such AIFs are ELTIFs. Hence it will be possible to respond to a reverse enquiry provided on the basis of the Investor's First Approach (as such term is defined in the Part B Memorandum). Retail Investors: The position as outlined above also applies in the case of a Non-Professional Investor. Even where responding to a reverse enquiry, it is likely necessary to comply with PRIIPs requirements for a KID where a Fund is sold to Non-Professional Investors.
(j) Would the OFI requirements referred to in (p) below also apply where the OFI receives and responds to a reverse enquiry in relation to a Fund that benefits from the ELTIF Marketing Passport in your jurisdiction?	Professional Investors only: No, a non-EEA OFI could respond to a reverse enquiry regarding a Fund that benefits from the ELTIF Marketing Passport. See 4.2(e)(ii) of the Part B Memorandum which applies equally to in this scenario. Retail Investors: The position as outlined above also applies where the investor is a Non-Professional Investor.
For example, could an OFI respond to a reverse enquiry regarding a Fund that benefits from the ELTIF Marketing Passport without triggering firm notification/licensing or approval requirements?	
Pre-Marketing	
(k) Is it possible to pre-market an ELTIF to a Professional Investor before it is passported into your jurisdiction? Where yes, on what basis is this possible? Is it in line with the CBDF Pre-Marketing regime?	It is possible to pre-market an ELTIF to Professional Investors on the same basis as set out in section 4.4(b) of the Part B Memorandum.
(l) For Retail Investors is it possible to pre-market (A) before committing to notify ; or (B) during the relevant notification	It is possible to for an EEA AIFM to pre-market an ELTIF or ELTIF strategy meant to be marketed to Non-Professional Investors (A) before committing to notify under art. 31 (2) of the ELTIF

process? If so, please could you provide a definition of what would amount to permitted “pre-marketing” of an ELTIF in this context.	Regulation and (B) during the relevant notification process (provided the EEA AIFM is authorised in its home state). The Norwegian pre-marketing regime was extended to Non-Professional Investors and broadly the same rules apply.
(m) Where “pre-marketing” of an ELTIF to Retail Investors is permitted in your jurisdiction, please could you outline the types of marketing activities which would fall within the scope of such permitted “pre-marketing”, distinguishing if relevant between:	As a general point, the pre-marketing regime for Professional Investors and Non-Professional Investors are in most aspects identical, save that pre-marketing to Non-Professional Investors can only be carried out for funds or strategies that are meant to be marketed to Non-Professional Investors.
(i) the types of materials that can be circulated (e.g. presentations, offering documents, subscription documents);	Any type of information distributed as part of pre-marketing should not be sufficient to allow investors to commit to acquiring units or shares of a particular AIF. Subscription documents (whether drafts or final) should not be shared. Constitutional documents, a prospectus or offering documents can be provided in draft form provided, they shall not contain information sufficient to allow investors to take an investment decision and shall clearly state that: (a) they do not constitute an offer or an invitation to subscribe to units or shares of an AIF; and (b) the information presented therein should not be relied upon because it is incomplete and may be subject to change.
(ii) the status of the ELTIF (e.g. whether established or still under formation);	An ELTIF may be pre-marketed to Non-Professional Investors in Norway, irrespective of whether it is established or under formation-
(iii) whether the documents are in draft or final form; and	Constitutional documents, a prospectus or offering documents can be provided in draft form provided, they shall not contain information sufficient to allow investors to take an investment decision and shall clearly state that: (a) they do not constitute an offer or an invitation to subscribe to units or shares of an AIF; and (b) the information presented therein should not be relied upon because it is incomplete and may be subject to change. Constitutional documents, a prospectus or offering documents of a not-yet-established AIF in a final form may not be used in connection with pre-marketing.
(iv) any other relevant considerations in your jurisdiction (e.g. number or type of investor to whom the “pre-marketing” is done).	N/A

(n) Are there specific “pre-marketing” activities to avoid on the basis that these will trigger the ELTIF marketing passport notification requirement?	No, not over and above the general pre-marketing regime.
(o) Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI pre-marketing an ELTIF in your jurisdiction?	Professional Investors and Retail Investors: Yes, the third party must be a MiFID II Investment Firm, a CRD Credit Institution, a UCITS ManCo, an EU AIFM or a MiFID II tied agent (as referred to in Section 4.4(b)(v) of the Part B Memorandum).
OFI Licensing Requirement	
(p) Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling an ELTIF that has been passported into your jurisdiction?	Professional Investors only: Where the OFI is the AIFM of the AIF that is being marketed/sold to investors in Norway via the ELTIF Marketing Passport, the marketing and selling will fall within the scope of the AIFM's authorisation. To conduct related activities (such as e.g. the provision of Investment Advice it will need to check if it has the necessary permissions). Marketing/Selling by an OFI who is not the AIFM will not fall within the scope of the AIFM's authorisation. If the marketing/selling activity involves an investment service (e.g. Investment Advice or Arranging), the OFI will be subject to the Licensing Requirement and will either need to be an EEA Passporting Entity or hold a Norwegian MiFID II licence unless the Third Country Firm Regime applies. Retail Investors: See above, although note that the Third Country Firm Regime will not be relevant in this context as it only applies in respect of “eligible counterparties” in Norway.
Marketing Activities	
(q) With reference to section 8.1 of Part B Memorandum, please can you confirm which particular considerations apply when the activity relating to an ELTIF involves: (i) the distribution of written marketing materials (ii) marketing via telephone (iii) marketing via Fly-In Meeting??	(i) Professional Investors only: The considerations which apply to an AIF set out in section 8.1 apply. Retail Investors: In addition to the above, it will be necessary to consider the ELTIF Additional Retail Investor Documentation Requirements. (ii) Professional Investors only: The considerations which apply to an AIF set out in section 8.2 apply. Retail Investors: See above. (iii) Professional Investors only: See section 8.3 of the Part B Memorandum – there are no particular additional considerations based on the activity being conducted at a Fly-In Meeting.

	Retail Investors: See above.
(r) Is it recommended or mandatory to include certain disclaimers/warnings in the written marketing materials for an ELTIF? If so, provide recommended wording in Appendix 1 of this Memorandum.	Please see Appendix 1 for recommended and mandatory disclaimers. Professional Investors only: Yes, the disclosures contained in the ELTIF Transparency Requirements must be made, including information about the illiquid nature of the ELTIF. Retail Investors: Yes, in addition to the requirements for Professional Investors, the ELTIF Additional Retail Investor Documentation Requirements apply which includes specifically a Clear Written Alert with regard to certain features of the ELTIF.

APPENDIX 1**DISCLAIMERS****A: DISCLAIMERS – ELTIF MARKETING PASSPORT****Recommended wording if the ELTIF is being marketed/sold via passport to Professional Investors only:**

As of the date of this Supplemental Memorandum, the NFSA has not issued specific guidance in respect of ELTIFs authorised in another Member State that will be marketed to Professional Investors in Norway. In the absence of such guidance, we recommend using the following disclaimer language applicable to AIFs when marketing/selling ELTIFs to Professional Investors only.

This [Fund] shall only be marketed to professional investors in Norway, as defined in Article 2(2) of Regulation (EU) 2015/760 on European long-term investment funds as amended by Regulation (EU) 2023/606 (the ELTIF Regulation). This Fund shall not be marketed to retail investors, as defined in the ELTIF Regulation.

Recommended wording if the ELTIF is being marketed/sold via passport to Retail Investors/Non-Professional Investors:

No specific disclaimer is required, however please note the additional requirements referred to below.

Additional Requirements:

Please also see question (r) for additional considerations that apply in connection with the written materials relating to an ELTIF. These depend on whether the ELTIF is offered to Professional Investors only or also to Retail Investors/Non-Professional Investors.

Please note that the prospectus for an ELTIF is required to include the information to be disclosed by collective investment undertakings of the closed-end type in accordance with PR3. However, depending on the type of ELTIF (e.g. whether the interests amount to “securities” within the scope of the PR3 and/or whether it will be listed) it may be separately necessary to consider whether it is required to have the prospectus approved pursuant to PR3 or whether the activities can be structured pursuant to a PR3 exemption.

Where the activities are being structured pursuant to a PR3 exemption it may be advisable to include an appropriate disclaimer.